

- (a) Only (A) (b) Only (B)
(c) Neither (A) nor (B) (d) Both (A) & (B)

R.A.S./R.T.S. (Pre) 2018

Ans. (d)

In 1920, the Indian National Congress session was held in Nagpur under C. Vijayaraghavachariar. After Nagpur session of Congress, the provincial congress committees were constituted on the linguistic basis.

In 1948, the commission was chaired by S.K. Dhar, to investigate the feasibility of organizing states on the linguistic basis. In 1948, congress founded the JVP committee consisting of "Jawaharlal Nehru, Vallabhai Patel and Pattabhi Sitaramaya to study the recommendations of the Dhar Committee. The committee had rejected the proposal of division of states on the basis of language.

The Citizenship

*The Constitution deals with the citizenship from Articles 5 to 11 under Part II.

*India, like Britain, adopted the system of single citizenship.

*Article 11 empowers the Parliament for making laws regarding citizenship.

*The Indian Citizenship Act was passed by Parliament in 1955.

*It prescribes five ways of acquiring citizenship – **(1) By Birth, (2) By Descent, (3) By Registration, (4) By Naturalisation and (5) By incorporation of territory.**

*The Indian Citizenship Act 1955, prescribes three ways of losing citizenship, whether acquired under the Act or prior to it under the Constitution – (1) By Renunciation, (2) By Termination and (3) By Deprivation.

***Article 6** provides for the rights of citizenship of certain persons who have migrated to India from Pakistan.

***Article 7** provides for the rights of citizenship of certain migrants to Pakistan.

***Article 8** provides for the rights of citizenship of certain persons of Indian origin residing outside India.

*Persons voluntarily acquiring citizenship of a foreign State not to be citizens is mentioned in **Article 9**. *As per the section 5 (1) (a) of the Citizenship Act 1955, a person of Indian origin can acquire citizenship by registration if a person of Indian origin who has been a resident of India for 7 years before applying for registration. The Act has been amended six times: in 1986, 1992, 2003, 2005 and 2015, 2019.

*Under section 7(A) of 'The Citizenship Amendment Act, 2015' the Central government may, subject to such conditions, restrictions and manner as may be prescribed, on an application made on this behalf, register as an overseas citizen of India

cardholder. Under this Amendment Act, it has been provided that no person, who or either of whose parents or grandparents or greatgrand parents is or had been a citizen of Pakistan, Bangladesh or such other country as the central government may, by notification in the official Gazette, specify shall be eligible for registration as an overseas citizen of India cardholder under this sub-section.

* The Citizenship (Amendment) Act, 2019 was passed by the Parliament of India on 11 December, 2019. It amended the Citizenship Act, 1955 by providing Indian Citizenship for illegal migrants of Hindu, Sikh, Jain, Parsi, Buddhist and Christian religious minorities who had come to India before **31 December, 2014** due to religious persecution from Pakistan, Bangladesh and Afghanistan, Muslims are not included in this Act. This Act came into force on **10 January, 2020**. *This Act does not apply to the tribal areas of Assam, Meghalaya, Mizoram and Tripura, which are included in the sixth schedule of the constitution. *This Act does not apply even in the areas coming to the inner line under the Bengal Eastern Frontier Regulation, 1873.

1. In which Part of the Constitution of India we find the provisions relating to citizenship?

- (a) PART I (b) PART II
(c) PART VII (d) PART IX

U.P.P.C.S. (Pre) 2018

Ans. (b)

Provisions relating to Citizenship are contained in Part II of the Indian Constitution (under Articles 5 to 11).

2. Which part of Constitution contains provisions relating to citizenship?

- (a) Part I (b) Part III
(c) Part II (d) Part IV

U.P.U.D.A./L.D.A. (Spl) (Mains) 2010

Ans. (c)

See the explanation of the above question.

3. Which Articles of Indian Constitution are related to citizenship?

- (a) Article 3 to 10
(b) Article 4 to 11
(c) Article 5 to 11
(d) Article 6 to 11

U.P.P.C.S. (Pre) 2020

Ans. (c)

See the explanation of the above question.

4. The citizenship provided by the Constitution of India is:

- (a) Dual citizenship (b) Single citizenship
- (c) Both of the above (d) None of the above

U.P.P.C.S. (Pre) 1994

Ans. (b)

The Constitution of India has established a single Citizenship for the whole country. Every citizen has citizenship of India, unlike the U.S.A. where dual citizenship, one of the federation and the other of a particular state, is prevalent.

5. Which one of the following features of citizenship in India is correct?

- (a) Dual Citizenship of the State and Nation
- (b) Single Citizenship of a State
- (c) Single Citizenship of whole of India
- (d) Dual Citizenship of India and another Country

U.P.P.C.S. (Pre) 2015

Ans. (c)

See the explanation of the above question.

6. Indian citizenship cannot be obtained by –

- (a) Birth
- (b) Naturalization
- (c) Absorbing any part of land
- (d) Depositing money in Indian Banks

41* B.P.S.C. (Pre) 1996

Ans. (d)

According to the Indian Citizenship Act 1955 (as amended), the citizenship may be acquired on the basis of- (1) Birth, (2) Descent, (3) Registration, (4) Naturalization, (5) Incorporation of Territory. Depositing Money in Indian banks is a commercial action, not a basis to acquire citizenship as per the Constitution.

7. A citizen of India will lose his or her citizenship if he or she

- 1. renounces Indian citizenship.
- 2. Voluntarily acquires the citizenship of another country.
- 3. marries a citizen of another country.
- 4. criticizes the government.

Select the correct answer using the codes given below:

- (a) 1, 2 and 3 (b) 2, 3 and 4
- (c) 1 and 2 only (d) 1 and 4 only

U.P. P.C.S. (Mains) 2017

Ans. (c)

The Citizenship Act (1955) prescribes three ways of losing the citizenship, whether acquired under the Act or prior to it under the constitution, viz, renunciation, termination and deprivation. Hence option 3 & option 4 are incorrect in this regard.

8. With reference to India, consider the following statements :

- 1. There is only one citizenship and one domicile.
- 2. A citizen by birth only can become the Head of State.
- 3. A foreigner once granted the citizenship cannot be deprived of it under any circumstances.

Which of the statements given above is/are correct?

- (a) 1 only (b) 2 only
- (c) 1 and 3 (d) 2 and 3

I.A.S. (Pre) 2021

Ans. (a)

In India, we have single citizenship, i.e., a person can have only one citizenship. Also, at a particular time, a person can have only one domicile. The concept of single citizenship has been adopted in India from the British Constitution of the United Kingdom. Thus, statement 1 is correct. Any citizen (Citizen by birth or Naturalised Citizen) can become the Head of State, i.e., the President, in India. The Citizenship Act offers other categories of citizenship like Citizenship by Registration (Section 5) and Citizenship by Naturalization (Section 6).

If the registration or certificate of naturalization was obtained by "means of fraud, false representation or the concealment of a material fact; or that citizen has shown himself by act or speech to be disloyal or disaffected towards the Constitution of India as by law established; or that citizen has, during any war in which India may be engaged, unlawfully traded or communicated with an enemy; or that citizen has been ordinarily resident out of India for a continuous period of seven years", that person's citizenship can be cancelled. Hence, statements 2 and 3 are incorrect.

9. Who among the following is not eligible for registering as overseas citizen of India cardholder under the Citizenship Amendment Act, 2015?

- (a) A minor child whose parents are an Indian citizen.
- (b) Spouse of foreign origin of an Indian citizen.
- (c) Indian who migrated to Pakistan after partition
- (d) A great grandchild of a person who is a citizen of another country but whose grandparents were a citizen of India at the time of commencement of the Constitution.

U.P.P.C.S. (Mains) 2016

Ans. (c)

The Central Government made a provision for registering as an overseas citizen of India card holder under Section 7(A) of the Indian Citizenship Amendment Act, 2015. Eligibility to register as an overseas citizen of India card holder is –

- (a) Any person of full age and capacity,
- (i) Who is a citizen of another country, but was a citizen of India at the time of, or at any time after the commencement of the Constitution; or
- (ii) Who is a citizen of another country, but was eligible to become a citizen of India at the time of the commencement of the Constitution; or
- (iii) Who is a citizen of another country, but belonged to a territory that became part of India after the 15th day of August, 1947; or
- (iv) Who is a child or a grandchild or a great-grandchild of such a citizen; or
- (b) A person, who is a minor child of a person mentioned in clause (a); or
- (c) A person, who is a minor child, and whose parents are citizens of India or one of the parents is a citizen of India; or
- (d) Spouse of foreign origin of a citizen of India or spouse of foreign origin of an overseas citizen of India cardholder registered under Section 7-A and whose marriage has been registered and subsisted for a continuous period of not less than two years immediately preceding the presentation of the application under this section:

Provided that for the eligibility for registration as an overseas citizen of India card holder, such spouse shall be subjected to prior security clearance by a competent authority in India:

Provided further that no person, who or either of whose parents or grandparents or great-grandparents is or had been a citizen of Pakistan, Bangladesh or such other country as the Central Government may, by notification in the Official Gazette, specify, shall be eligible for registration as an overseas citizen of India card holder under this sub-section. Thus Indian, who migrated to Pakistan after the partition, are not eligible to register as an overseas citizen.

10. Consider the following statements:

1. **Article 371 A to 371 I were inserted in the Constitution of India to meet regional demands of Nagaland, Assam, Manipur, Andhra Pradesh, Sikkim, Mizoram, Arunachal Pradesh and Goa.**

2. **Constitution of India and the United States of America envisage a dual polity (The Union and the States) but a single citizenship.**

3. **A Naturalized citizen of India can never be deprived of his citizenship.**

Which of the statement given above is/are correct?

- (a) 1, 2 and 3
- (b) 1 and 3
- (c) 3 only
- (d) 1 only

I.A.S. (Pre) 2005

Ans. (d)

Articles 371-A to 371-I were inserted in the Constitution of India to meet the regional demands of Nagaland, Assam, Manipur, Andhra Pradesh, Sikkim, Mizoram, Arunachal Pradesh and Goa. There is a provision for dual citizenship in the United States of America, but the Indian Constitution provides single citizenship. Also, a naturalized citizen may be deprived of his citizenship subject to the provisions of section 10 of the Citizenship Act, 1955. Thus, only statement 1 is correct.

11. Which country accepted the policy of Dual Citizenship?

- (a) India
- (b) Canada
- (c) Australia
- (d) U.S.A.

M.P.P.C.S. (Pre) 2006

Ans. (d)

The United States has accepted the principle of dual citizenship. Every citizen enjoys dual citizenship in the U.S.– firstly, as a citizen of the U.S.A. and secondly, as a citizen of the state where he resides.

12. Who/which of the following is competent to prescribe conditions for acquisition of citizenship?

- (a) Election Commission
- (b) President
- (c) Parliament and State Legislatures jointly
- (d) Parliament

U.P.P.C.S. (Mains) 2013

Ans. (d)

Article 11 of the Constitution of India declares that the Parliament shall have the power to regulate the right of citizenship by making law. By exercising this power, Parliament enacted the Citizenship Act, 1955 which gives provisions for acquisition and termination of citizenship. The Central Government, by exercising its power under Section 18 of the Citizenship Act, 1955, made Citizenship Amendment Rules, 2009.